

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #11	CCRB Case #: 201508108	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 09/24/2015 3:30 AM	Location of Incident: § 87(2)(b)	Precinct: 30	18 Mo. SOL 3/24/2017	EO SOL 3/24/2017	
Date/Time CV Reported Thu, 09/24/2015 4:15 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/24/2015 4:15 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM James Burpoe	13067	950132	030 PCT
2. POM Fidel Santiago	00929	951205	030 PCT
3. An officer			Unknown

Officer(s)	Allegation	Investigator Recommendation
A.POM James Burpoe	Abuse: PO James Burpoe stopped § 87(2)(b)	§ 87(2)(b)
B.POM Fidel Santiago	Abuse: PO Fidel Santiago stopped § 87(2)(b)	§ 87(2)(b)
C.POM James Burpoe	Abuse: PO James Burpoe frisked § 87(2)(b)	§ 87(2)(b)
D.POM James Burpoe	Abuse: PO James Burpoe refused to provide his name and shield number to § 87(2)(b)	§ 87(2)(b)
E. An officer	Abuse: An officer frisked § 87(2)(b)	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On September 24, 2015, PO § 87(2)(b) who is a Police Officer with the NYPD and currently assigned to the 44th Precinct, filed this complaint on behalf of her § 87(2)(b), § 87(2)(b) PO § 87(2)(b) did not witness any part of the incident.

On September 24, 2015, at approximately 3:30 a.m., PO James Burpoe and PO Fidel Santiago, from the 30th Precinct, stopped § 87(2)(b) and § 87(2)(b) at the corner of § 87(2)(b) Manhattan (**Allegations A and B**). PO Burpoe frisked § 87(2)(b) and allegedly refused to provide his name and shield number to § 87(2)(b) (**Allegations C and D**). Either PO Burpoe or PO Santiago allegedly frisked § 87(2)(b) (**Allegation E**). PO Burpoe and PO Santiago left and did not arrest or issue a summons to § 87(2)(b) or § 87(2)(b) § 87(4-b) § 87(2)(g)

Video footage was obtained from the TARU camera located at the intersection of the incident location. However, the two camera angles covered the opposite side of the street.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- Results regarding a Notice of Claim are pending (**Board Review 1**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) This is the first CCRB complaint involving § 87(2)(b) and § 87(2)(b) (**Board Review 3**).
- PO James Burpoe has been a member of the service for 4 years and there are no substantiated CCRB allegations against him.
- PO Fidel Santiago has been a member of the service for 4 years and there are two substantiated CCRB allegations in one investigation against him. In case number 201500911, a vehicle search allegation and a frisk allegation were substantiated. In the same case, an allegation of search of person was unsubstantiated. The CCRB recommended formalized training. The NYPD disposition is pending.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) stated that PO Burpoe frisked him while PO Santiago frisked § 87(2)(b) (**Board Review 4**). § 87(2)(b) who only provided a brief phone statement, alleged that PO Burpoe frisked him and PO Santiago frisked § 87(2)(b) Following his phone statement, § 87(2)(b) was uncooperative with the investigation (**Board Review 5 and 11**). PO Burpoe acknowledged that there was another male with § 87(2)(b) but he did not recall interacting with or frisking

him (**Board Review 6**). PO Santiago stated that there were one or two other males with § 87(2)(b) but he denied interacting with or frisking him (**Board Review 7**). § 87(2)(g)

Allegations not Pleaded

§ 87(2)(g)

§ 87(2)(g)

Allegation A: Abuse of Authority- PO James Burpoe stopped § 87(2)(b)

Allegation B: Abuse of Authority- PO Fidel Santiago stopped § 87(2)(b)

Allegation C: Abuse of Authority- PO James Burpoe frisked § 87(2)(b)

According to § 87(2)(b) he and § 87(2)(b) left § 87(2)(b)'s home located at § 87(2)(b) and were headed to § 87(2)(b) home at § 87(2)(b). § 87(2)(b) was wearing a navy blue shirt, jeans, and navy blue and white sneakers. § 87(2)(b) had a cellphone in his left front pocket, a wallet and keys in his right front pocket and a palm-size oval hairbrush in his back right pocket. § 87(2)(b) and § 87(2)(b) first walked to the corner of § 87(2)(b) and § 87(2)(b), and while waiting for the streetlight to change, a black car pulled up and the driver side door quickly opened and shut closed. § 87(2)(b) and § 87(2)(b) continued walking up to § 87(2)(b). They planned to stop at § 87(2)(b) located at § 87(2)(b) before going to § 87(2)(b) home.

§ 87(2)(b) and § 87(2)(b) were waiting for the streetlight to change when the unmarked car made a U-turn and stopped in front of them. PO Burpoe stuck his head out of the passenger side window and said, "Hey, what's up? How are you doing?" § 87(2)(b) recognized PO Burpoe because he had arrested § 87(2)(b) when he was § 87(2)(a) FCT § 380.1. § 87(2)(b) replied, "I'm fine. Why?" PO Burpoe asked, "You have anything you're not supposed to have on you?" § 87(2)(b) replied, "No," and attempted to walk away. PO Burpoe and PO Santiago then exited the unmarked car and approached § 87(2)(b) and § 87(2)(b). PO Burpoe told § 87(2)(b) that he was going to check. § 87(2)(b) said, "You can't do that anymore. Isn't there no more stop and frisk?" PO Burpoe responded, "Yes there is. Ask your mom. § 87(2)(b)." § 87(2)(b) said, "I'm sure there's not. Can I leave now?" § 87(2)(b) took one step and PO Santiago grabbed § 87(2)(b) upper arms from behind. § 87(2)(b) stayed in place because he did not want to get in trouble.

PO Burpoe stood in front of § 87(2)(b) and, using both hands, patted his front pockets first, then reached around his waist and patted his back pockets. Then, PO Burpoe patted around § 87(2)(b) waist, from the front to the back around his clothes, and then leaned forward and tapped around his left ankle and then his right ankle. While being patted down, § 87(2)(b) asked, "Can I get your badge number and your name?" PO Burpoe ignored § 87(2)(b). Simultaneously, PO

Santiago approached § 87(2)(b) who was standing to the right of § 87(2)(b) and patted him. § 87(2)(b) did not see in what order PO Santiago patted § 87(2)(b) but saw him pat § 87(2)(b)'s front pockets, back pockets, and then his ankles. § 87(2)(b) told PO Santiago, "Y'all can't do this." PO Santiago did not respond. The frisk lasted approximately three minutes long. Neither PO Burpoe nor PO Santiago searched § 87(2)(b) or § 87(2)(b)'s pockets. Following the frisks, § 87(2)(b) asked PO Burpoe again, "Can I get your badge number? This is the second time." PO Burpoe, who was facing § 87(2)(b) turned around and walked away to the unmarked car. PO Burpoe and PO Santiago entered the unmarked car and drove off. § 87(2)(b) and § 87(2)(b) went to § 87(2)(b) home **(Board Review 4)**.

§ 87(2)(b) was consistent with § 87(2)(b) about the unfolding of the stop. § 87(2)(b) stated that PO Santiago patted § 87(2)(b)'s entire body. PO Burpoe patted § 87(2)(b)'s legs and pockets. After patting them down, the officers told § 87(2)(b) and § 87(2)(b) they could leave. PO Burpoe told § 87(2)(b) that he is a robber. § 87(2)(b) argued back, but § 87(2)(b) did not recall what else was said **(Board Review 5)**.

Both PO Burpoe and PO Santiago stated that the area they were patrolling had a lot of violent crime. PO Burpoe stated that the bars in that area had problems with people being robbed and were too inebriated to protect themselves. PO Santiago stated that many of the patrons of the particular bar near this incident was frequented by illegal immigrants who did not have bank accounts and carried a lot of cash and were "easy targets" for being robbed. Both officers stated that they observed § 87(2)(b) circling around the bar multiple times, without appearing to have any sense of direction and believed that he was going to rob the patrons. PO Burpoe and PO Santiago both stated that § 87(2)(b) has been arrested robbery and criminal possession of a weapon within the last year **(Board Review 8)**. PO Burpoe and PO Santiago observed a bulge and handle in § 87(2)(b) rear pocket and believed that it was the handle to a weapon **(Board Review 6 and 7)**.

PO Burpoe stated that he immediately recognized § 87(2)(b) before approaching him and added that he believed § 87(2)(b) is affiliated with a local gang. Before approaching § 87(2)(b) PO Burpoe observed two patrons leave the bar and walk towards a poorly lit area. Simultaneously, PO Burpoe observed § 87(2)(b) and § 87(2)(b) walk towards the two patrons. PO Burpoe and PO Santiago headed towards § 87(2)(b) when § 87(2)(b) tapped § 87(2)(b) on the shoulder and said something to him. § 87(2)(b) and § 87(2)(b) immediately turned around and headed towards a different direction. PO Burpoe's interpreted this action as changing directions at the sight of an officer. PO Burpoe then observed a handle sticking out from his back pocket. The handle was dark and stuck out approximately four to five inches from § 87(2)(b) pocket. PO Burpoe did not know what that object was, but he believed it was the handle of a knife or a dagger. PO Burpoe decided to stop § 87(2)(b) and speak with him.

PO Burpoe and PO Santiago approached § 87(2)(b) and PO Burpoe said, "What's up?" § 87(2)(b) responded, "What's up, Officer B?" PO Burpoe asked § 87(2)(b) what he was doing. § 87(2)(b) responded, "Fuck you stopping me for, what do you want?" PO Burpoe told § 87(2)(b) he should know why he is questioning him and told § 87(2)(b) that he had a handle sticking out of his pocket and again asked § 87(2)(b) what he was doing. § 87(2)(b) immediately started backing up, reached towards the pocket with the handle and refused to

answer PO Burpoe's question. PO Santiago stood behind § 87(2)(b) and told him to relax and redirected § 87(2)(b) hands to his sides. PO Burpoe then reached his hand towards § 87(2)(b) back pocket and felt the hard handle. PO Burpoe still believed that the handle was a weapon so he pulled the object out of the pocket. PO Burpoe then realized that the object was a comb. PO Burpoe returned the comb and told § 87(2)(b) to calm down and that he was free to go. PO Burpoe did not recall if he frisked § 87(2)(b) other back pocket, his ankles, his waist, or his front pockets. PO Burpoe did not see PO Santiago frisk § 87(2)(b) **(Board Review 6).**

PO Santiago stated that he and PO Burpoe observed § 87(2)(b) for approximately one to two minutes. PO Santiago drove closer and from approximately twenty yards away he observed the bulge. PO Santiago believed the bulge was in § 87(2)(b) rear-right pocket. PO Santiago described the bulge as a large object with a handle sticking out of the pocket. PO Santiago could not describe the bulge's size, but also believed that, because of the handle, the object was a knife or a blunt instrument. Both officers stopped § 87(2)(b) to make sure that he was not in possession of a weapon or casing the area for potential robbery victims. PO Santiago recognized § 87(2)(b) upon the approach. § 87(2)(b) immediately started cursing at and backing away from the officers. PO Burpoe told § 87(2)(b) that they just wanted to speak with him and make sure that he did not have anything sharp that could hurt them. PO Burpoe then frisked § 87(2)(b) back pocket, removed the object and discovered that the object was a brush. PO Burpoe placed the brush back into § 87(2)(b) pocket and then frisked § 87(2)(b) chest, under his arms, his waist and then his ankles. PO Santiago stood behind § 87(2)(b) during the frisk and elevated his arms to ensure § 87(2)(b) was not reaching for anything. § 87(2)(b) was then let go **(Board Review 7).**

There is no Stop, Question, and Frisk report regarding the stop of § 87(2)(b) **(Board Review 8 and 9).** There is no Event regarding this incident **(Board Review 10).** § 87(2)(b) arrest history shows two prior arrests. Only one of these arrests occurred prior to the incident, § 87(2)(b), and the charges are unknown because the arrest is sealed **(Board Review 2).**

The presence of an individual known to have previously committed a particular crime in an area high in incidents of that crime does not, by itself, justify a stop. While an officer's knowledge of a person's criminal history may be relevant to providing founded suspicion of criminality, founded suspicion of criminal activity arises only when there is some present indication of criminality based on observable conduct. An officer's mere unscientific guess as to a person's propensity to commit crimes, without some objective indicia that a crime has taken, will take, or may be taking place, is simply insufficient to justify isolating that person from a group of people and making inquire as to his conduct. People v. Boulware, 515 N.Y.S.2d 238 (1987-Sup. Ct NY County) **(Board Review 12)** In order to frisk a person, an officer must have reasonable suspicion that the person stopped is armed and dangerous. Arizona v. Johnson, 555 U.S. 323, 356-27 (2009) **(Board Review 13)**

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation D: Abuse of Authority- PO James Burpoe refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that while being patted down, he asked PO Burpoe, “Can I get your badge number and your name?” PO Burpoe ignored § 87(2)(b). After the frisks, § 87(2)(b) asked PO Burpoe again, “Can I get your badge number? This is the second time.” PO Burpoe was facing § 87(2)(b) but turned around and walked away to the unmarked car **(Board Review 4)**.

§ 87(2)(b) § 87(2)(g) stated that § 87(2)(b) made additional statements that he did not recall to PO Burpoe and PO Santiago **(Board Review 5)**.

PO Burpoe stated that he immediately provided his name and shield number to § 87(2)(b) upon approaching him because § 87(2)(b) was considered stopped. However, PO Burpoe did not recall if § 87(2)(b) asked him or PO Santiago for their names or shield numbers during the incident **(Board Review 6)**.

PO Santiago § 87(2)(g) § 87(2)(b) asked for their names and shield numbers while he was frisked. However, PO Santiago stated that both he and PO Burpoe immediately provided the information to § 87(2)(b) **(Board Review 7)**.

§ 87(2)(g)

Allegation E: Abuse of Authority- An officer frisked § 87(2)(b)

§ 87(2)(g) [REDACTED]
[REDACTED] the investigation was unable to
identify the officer that frisked him. § 87(2)(g) [REDACTED]
[REDACTED].

§ 87(4-b), § 87(2)(g)

Squad: **11**

Investigator: _____
Signature Print Date

Pod Leader: _____

Title/Signature	Print	Date
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Attorney: _____

Title/Signature	Print	Date